

GOING SOUTH
Tamil Nadu Governor R.N. Ravi with CM M.K. Stalin

an assembly session without consulting the chief minister, the apex court declared the decision unconstitutional. "The governor can summon, prorogue and dissolve the House only on the aid and advice of the council of ministers with the chief minister as the head. And not at his own will," the Bench led by the then Chief Justice J.S. Khehar held in a unanimous judgment. The Court said that Article 163 of the Constitution does not give the governor a "general discretionary power to act against or without the advice of his council of ministers".

If Vijayan has reminded Khan of the limits of his power, his Punjab counterpart Mann has accused the governor of "constantly interfering" in the functioning of his government, a charge Governor Purohit has rubbished as "baseless". They are not the only CMs complaining about such interference. The major friction point has been the governor's discretionary powers. In fact, foreseeing the possibility of misuse, some members of the Constituent Assembly had expressed reservations about the impartial functioning of a nominated governor endowed with "discretionary powers". They also raised doubts about Article 147 (now 167), which empowers the governor to ask the chief minister to furnish any information regarding the "administration of the affairs of the state and proposals for legislation". However, B.R. Ambedkar, referring to the governor's position as "ornamental", called his powers "limited" and "nominal". In one of his famous speeches in the Constituent Assembly, the father of the Constitution said the governor has no functions that he can discharge by himself and that he has only certain duties to perform.

The Supreme Court has said that the governor's discretionary powers are limited to specified areas such as giving assent or withholding/ referring a bill to the President, appointment of the chief minister and dismissal of a government that has lost the confidence of the assembly but refuses to quit. It was first asserted in 1974 in the judgment by the Constitution Bench of the Supreme Court in the Shamsher Singh case.

In another historic verdict, in the S.R. Bommai case in 1994, the Supreme Court said that the proclamation of President's rule by the governor was not immune to judicial review, adding that the floor test was only a way to assess the state government's strength and that it was not a matter of the private opinion of the governor or the President. Moreover, the bench declared that the imposition of Emergency under Article 356 was justified only in the event of the breakdown of the constitutional, and not the administrative, machinery.

THE SUPREME COURT HAS OFTEN REMINDED GOVERNORS ABOUT THE LIMITS TO THEIR DISCRETIONARY POWERS

NO ACTION ON REFORMS

Multiple commissions such as the Administrative Reforms Commission (1968), the Rajamannar Committee (1971), the Committee of Governors (1971), the Bangalore Seminar of Experts (1983), the Sarkaria Commission (1988), the Justice V. Chelliah Commission (2002) and the M.M. Punchhi Commission (2010) have been formed by the central government to review and reform Centre-state relations and encourage cooperative federalism. Their reports speak of appointing non-political governors through independent broad-based mechanisms, securing the consent of the concerned CM to the appointment, and giving governors a fixed, non-renewable tenure. There are also recommendations about the manner of exercising discretion in the appointment and dismissal of chief ministers and the recommendation of President's rule. No government at the Centre, however, has taken up any of these reports and recommendations for implementation. Interestingly, in the 1980s, to end the monopoly of the Centre in selecting its 'own man' as governor, the BJP, along with the Left Front government in West Bengal, suggested that the appointment should be made from a panel prepared by the state legislature and that the appointing authority should be the Inter-State Council, not the central government.

The makers of the Constitution envisaged the governor's role as a constitutional watchdog who constitutes a vital link between the Union and the states. As the Sarkaria Commission pointed out, the governor's task "is to see that a government is formed and not to try to form a government". Instead of functioning as the government, governors need to ensure that the government functions well. ■